

Smt. Jayashree @ Sunita W/O Suresh Sutar vs Shri. Suresh S/O Pandurang Sutar on 23 October, 2018

Bench: B.Veerappa, H.T.Narendra Prasad

IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH

DATED THIS THE 23 R D DAY OF OCTOBER, 2018

PRESENT

THE HON'BLE MR.JUSTICE B.VEERAPPA
AND
THE HON'BLE MR.JUSTICE H.T. NARENDRA PRASAD
MFA NO.102980/2015 [MC]

BETWEEN:

SMT. JAYASHREE @ SUNITA
W/O. SURESH SUTAR
AGE:38 YEARS, OCC:HOUSEHOLD WORK
R/O: C/O: ASHOK SUTAR, IIIRD CROSS,
SAMARTNAGAR, BELAGAVI.

... APPELLANT

(BY SRI. I. Y. PATIL, ADV.)

AND:

SHRI. SURESH
S/O PANDURANG SUTAR
AGE:42 YEARS, OCC:CARPENTER
R/O:GODHALI VILLAGE,
TQ:KHANAPUR,
DIST:BELAGAVI.

... RESPONDENT

(BY SRI. SANJAY S. KATAGERI, ADV.)

THIS APPEAL IS FILED UNDER SECTION 28(1) OF
THE HINDU MARRIAGE ACT, AGAINST THE JUDGMENT
AND DECREE DATED 30.09.2011, PASSED IN
M.C.NO.18/2011 ON THE FILE OF THE SENIOR CIVIL
JUDGE, KHANAPUR, DESOLVING THE PETITION FILED BY
THE PETITIONER U/S.13(1)(a) AND (b) OF HINDU
MARRIAGE ACT, 1955.

:2:

THIS APPEAL COMING ON FOR

ADMISSION, THIS DAY, B.VEERAPPA J.,
DELIVERED THE FOLLOWING:

JUDGMENT

The present appeal is filed by the appellant-wife against the judgment and decree dated 30.09.2011 made in M.C. No.18/2011 passed by the Senior Civil Judge, Khanapur under the provisions of Section 13(1)

(a) and (b) of Hindu Marriage Act, dissolving the marriage solemnized between the parties on 14.03.1999.

2. Though the case is listed for admission, with the consent of the learned counsel for the parties, it is taken up for final disposal.

3. The present respondent who is the husband of the appellant-wife filed the petition under Section 13(1) (a) and (b) of the Hindu Marriage Act for divorce contending that the respondent and the present appellant are legally wedded husband and wife. Their marriage was solemnized as per Hindu rites, customs and rituals on 14.03.1999 at Surya Narayan Devastan, Aralawad village in Haliyal Taluka, Karwar District. They lived together for 12 years happily. Out of their wedlock, two daughters by name Shezal aged about 8 years and Sheetal aged about 6 years and one son by name Shriganesh aged about 4 years were born. After 12 years of their marriage the wife started quarrelling with the husband for silly reasons and thereby created unhealthy atmosphere at home. The respondent/ husband was disturbed mentally and physically insisting him for divorce for the reasons best known to her alone. Thereafter, the present appellant-wife left the house of the respondent-husband without intimating to him or any other person and went to her parental house. In spite of repeated requests made by the husband, she did not return back. Therefore, the husband was constrained to file petition under Section 9 of the Hindu Marriage Act for restitution of conjugal rights bearing No.5/2011, which came to be decreed. In spite of service of legal notice, the present appellant-wife has not obeyed the court order. Therefore, the husband filed the petition for divorce. As per the Records, the first notice was issued on 30.05.2011, the postal shara shows that 'the addressee has left the address'. The second notice was issued on 05.07.2011, the postal shara says that the respondent-the present appellant 'unclaimed'.

4. In order to establish the case of the petitioner, the petitioner-husband was examined as PW1 and marked the documents at Ex.P1 and P2 the legal notice and the acknowledgment slip. The trial Court based on the evidence of PW1 and documents as per Ex.P1 and P2 allowed the petition filed by the petitioner- husband and granted decree of divorce. Hence, the present appeal is filed by the wife.

5. It is also relevant to state that there was a delay of 1376 days in filing the appeal. This Court by accepting the cause shown in the application that she was not residing at the address shown in the cause title of the divorce petition, has condoned the delay.

6. We have heard the learned counsel for the parties to the lis.

7. Sri. I.Y. Patil, the learned counsel for the appellant-wife vehemently contended that the impugned judgment and decree passed by the Trial Court granting decree of divorce is erroneous and contrary to the material on record. He further contended that the appellant is residing in her relative's house, but, the respondent has shown the address of the present appellant at Goa in M.C. No.18/2011 and M.C. No.5/2011 with an intention to get ex-parte decree. He further contended that the notice issued by the Court was returned with the postal shara as 'addressee left the address'. Second postal cover returned as 'unclaimed'. Hence, notice was not properly served to her, therefore, the appellant has not contested the case. Therefore, the impugned order passed by the Trial Court without giving an opportunity to the appellant cannot be sustained. Therefore, he sought to allow the appeal.

8. Sri. Sanjay Katageri, the learned counsel for the respondent-husband sought to justify the impugned judgment and he would further contend that the same address was given in M.C. No.5/2011 where the husband filed the petition for restitution of conjugal rights. In the present M.C. case also the present appellant was placed ex-parte. The trial Court was justified by placing ex-parte order dated 30.09.2011 and proceeded to pass the decree of divorce based on the oral and documentary evidence adduced by the husband. Therefore, he sought to dismiss the appeal. He further contended that inspite of conjugal rights, decree granted and inspite of legal notice issued by the husband requesting the present appellant to join the company of the respondent-husband, the wife-appellant had violated the order of the Court. Therefore, the order passed by the trial Court granting decree of divorce cannot be interfered. He also further contended that the decree came to be passed on 30.09.2011 and the appeal filed by the appellant was only on 05.10.2015, in the meantime, after the expiry of the prescribed time for filing appeal the husband got married. Therefore, he sought to dismiss the petition. The said submission is placed on record. But, no documents have been placed on record before this Court to prove the same.

9. In view of the rival contentions urged by the learned counsel for the parties, the only point arises for consideration is :

"Whether the impugned judgment and decree passed by the trial Court granting decree without notice to the present appellant is justified in the facts and circumstances of the present case?"

10. We have given our anxious consideration to the arguments advanced by the learned counsel for the parties and perused the entire material on record including the original records carefully.

11. It is not in dispute that the marriage between the parties was held on 14.03.1999 and out of their wedlock two daughters and one son were born. It is also not in dispute that earlier, the husband filed the petition under Section 9 of the Hindu Marriage Act in M.C. No.5/2011 for Restitution of Conjugal Rights. The said petition came to be decreed, the same was not challenged by the wife and it has reached finality.

12. The present M.C. No.18/2011 is filed by the husband under the provisions of Section 13(1) (a) and

(b) Hindu Marriage Act raising various grounds of voluntary desertion by the wife and her disobedience for the court order, the trial Court passed the order in respect of conjugal rights. Para No. 3 of the judgment clearly depicts that "order-sheet reveals that, notice returned unclaimed. Hence she has been placed exparte." The original records clearly depicts that the address of the present appellant was given under cause title in M.C. No.18/2011 as H.No.13, Ward No.11, Shri Ganesh Nagar, Infront of Government Primary Marathi School, Corlim Mapusa-Goa Bardesh Mapusa Kurlin Goa. The notice was issued to the respondent on 30.05.2011 to the said address. The postal shara clearly depicts that the 'addressee left the address'. Again another notice was issued for the same address on 05.07.2011. The postal shara depicts that 'unclaimed' returned to sender, that is not the procedure for service of notice as contemplated under provisions of Order V Rule 9 of the Code of Civil Procedure. It is also not in dispute that the registered post sent to the said address clearly depicts that the addressee left the address, if this is so, the husband should have taken proper steps to furnish the correct address. Unfortunately, the second notice was also issued for the same address, when the postal shara depicts addressee 'unclaimed'. Therefore, it clearly depicts that there was no proper service to the appellant before passing the impugned judgment and decree. Therefore, the impugned order passed by the Trial Court cannot be sustained in law. One more ground to set aside the order passed by the Trial Court is that this Court while considering the application for condonation of delay has specifically stated that, at a relevant point of time she was residing in her relative's house and she was not residing in the address shown in the cause title of the divorce petition. In the present case, the appeal filed by the present appellant clearly depicts that she is resident of C/o: Ashok Sutar, IIrd Cross, Samarthnagar, Belagavi and the learned Judge without verifying the postal shara has proceeded to pass the impugned order.

13. Without advertng to the merit or demerits of the case, the matter requires reconsideration afresh by the learned Judge after giving an opportunity of hearing to both the parties.

14. In view of the above, this appeal by the wife is allowed. The impugned judgment and decree passed by the learned Senior Civil Judge, Khanapur, in M.C. No.18 of 2011 is set aside. The matter is remanded to the learned Senior Civil Judge, Khanapur, for fresh adjudication after giving an opportunity of hearing to both the parties in accordance with law. The parties are directed to appear before the learned Senior Civil Judge, Khanapur, on 27th November 2018. The learned Judge shall consider both the oral and documentary evidence to be adduced by the parties and proceed further in the matter strictly in accordance with law. All the contentions of the parties are left open.

Since the main matter itself is disposed of, the question of considering I.A.2 of 2015 for stay would not arise for consideration.

SD/-

JUDGE SD/-

JUDGE MNS/ & KMV